



**DETERMINATIONS & FINDINGS
FORM
FOR EXPORT LICENSE AND AGREEMENT APPLICATIONS**

1. Instructions

Based on the initial information you have provided to NTS Technical Systems during the RFQ process, we have determined that our testing services for you, our customer, will require a license from the U.S. Government before we can perform the test and issue a test report to you. This is a data-gathering form that we will need you to complete in order to apply for the export authorization from the US Government. Please provide accurate and detailed information to avoid having our license application rejected.

Please note that both the testing services that NTS provides to you, and the information contained in our test report to you are both export-controlled and require a license or an agreement before your company can receive them. Also, discussions of test results in emails or by phone or video conference cannot occur until the license or agreement has been approved. Once we have an export authorization in place, we can conduct the testing and transfer the test results to your company via our secure file-sharing program, LabInsight. <https://labinsight.nts.com/labinsight>

Test items controlled by the U.S. International Trafficking in Arms Regulations (“ITAR”) will require a Technical Assistance Agreement (“TAA”) from the U.S. Department of State’s Directorate of Defense Trade Controls (“DDTC”) before testing can begin. Test items controlled by the U.S. Export Administration Regulations (“EAR”) require a license from the U.S. Department of Commerce’s Bureau of Industry and Security (“BIS”) before the test report can be sent and the test item return to you.

Please provide the information requested, below, which NTS will use this information in filing our license application with the government. Please note that license applications rejected by the government for incomplete or insufficient information may cause weeks of delay in the planned testing schedule.

2. Who needs to be on this license?

Please list your company’s full business name and headquarters address, as you want it to appear on the license:

Please provide the name and contact information for an officer or a senior manager of your company who can sign the export agreement on behalf of your company:



- Name: _____
- Title: _____
- Phone number: _____
- Email address: _____

Will you share test data and information with your customers? Yes No

If yes, then please provide the names and addresses of your customers (including the country in which they operate) along with the name and email of your contact person:

Do any of your employees have citizenship in a country other than yours?

Yes No

If yes, then please list these countries: _____

Do any of your employees have dual citizenship in your country and another country?

Yes No

If yes, then please list these other countries: _____

Do these employees with other nationalities have valid security clearances from your government? Yes No

If yes, then please state the type of security clearance: _____

3. Please confirm what the test item is: _____

We have included the information that you have provided to us on the item you want us to test. Please provide more detailed information about your test item here. If you have a model number, or descriptive literature, please include. Please note that the US Government will reject license applications with incomplete descriptions of hardware:

a. Name of test item: _____

b. Part number or other identification: _____

c. Who is the manufacturer of the item: _____

d. What is the master assembly that this item is designed for:



- e. Type of testing you are requesting: _____
- f. Do you want NTS to return the test item to you after testing is complete?
Yes No
- g. In the future, will you need NTS to test products that are different from the ones you describe? Yes No
- If so, please list them: _____

4. Information on the export license process:

Licenses or Technical Assistance Agreements from the U.S. State Department will take from 60 to 90 days to be approved. Once a Technical Assistance Agreement has been approved, each party to the Agreement must sign the document confirming that they understand what is permitted under the agreement. Once the Agreement is signed, NTS will upload the Agreement to the State Department's database, and we can begin the testing. If your business name changes, or if we need to add additional customers to the Agreement, please inform NTS Export immediately so that we can update the Agreement.

Licenses from the U.S. Department of Commerce usually take 30 to 60 days for the government to approve. No signatures are necessary once the license is approved.

For questions concerning this form or the export licensing process, please contact:

Carolina Turner
Manager, Import/Export Compliance
(757) 992-4509
carolina.turner@nts.com

CERTIFICATION:

I have read and understand this form, and I confirm that the information provided herein is accurate and complete to the best of my knowledge:

Name: _____ Date: _____

Title: _____ Signature: _____

Company: _____